

TERMS AND CONDITIONS OF USE

Effective Date: 1-Apr-2026

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These Terms and Conditions of Use (“Terms”) govern access to and use of the websites, software applications, platforms, payment interfaces, communication channels, collection and debt-resolution services and other products or services made available under the **cGreen** brand (“Services”).

cGreen is a registered brand of MATFERENCE TECHNOLOGIES INDIA PRIVATE LIMITED, a company incorporated under the laws of India (“Matference”, “cGreen”, “Company”, “we”, “us” or “our”).

By accessing, registering for, communicating through, making a payment through, or otherwise using any cGreen Service, you (“User”, “you” or “your”) acknowledge that you have read, understood and agreed to these Terms.

If you do not agree with these Terms, you should not use the Services.

1. DEFINITIONS

For the purposes of these Terms:

“Borrower” means an individual or entity having or alleged to have repayment obligations towards a Lender in connection with a loan, credit facility or other financial obligation.

“Lender” means the relevant bank, non-banking financial company, financial institution, fintech, asset reconstruction company or other entity on whose behalf or pursuant to whose instructions cGreen provides collection, repayment facilitation, borrower-engagement or debt-resolution Services.

“Payment” means any repayment, instalment, overdue amount, settlement amount or other amount paid by a Borrower through a payment channel made available or communicated by cGreen on behalf of a Lender.

“Platform” means cGreen's websites, mobile applications, software, portals, dashboards, payment links, communication interfaces and associated technology.

“Services” include, as applicable, collection and debt-resolution services, borrower engagement, repayment facilitation, communication services, field-related collection support, technology-enabled collection workflows, analytics and other related services made available by cGreen.

2. NATURE OF cGREEN'S SERVICES

2.1 cGreen provides technology-enabled loan collection, borrower engagement, repayment facilitation and debt-resolution services to Lenders.

2.2 cGreen may communicate with Borrowers, facilitate Payments, communicate repayment obligations or resolution options supplied or authorised by Lenders, facilitate settlement or restructuring discussions, conduct permitted collection-related interactions and provide related technology and operational services.

2.3 Unless expressly stated otherwise for a specific product or transaction, **cGreen does not itself originate, sanction, underwrite or grant the underlying loan or credit facility.**

2.4 The contractual relationship relating to the underlying loan remains between the Borrower and the relevant Lender.

2.5 The loan agreement, sanction terms, key fact statement, account statement and records maintained by the relevant Lender shall govern the Borrower's underlying financial obligation.

2.6 Where there is any discrepancy between information displayed or communicated through cGreen and the records of the Lender regarding principal outstanding, interest, penalties, charges, repayment dates or other loan-related information, the matter may be subject to verification and reconciliation with the Lender.

3. cGREEN'S ROLE IN COLLECTION AND RESOLUTION

3.1 cGreen may act pursuant to an engagement, mandate or authorisation received from a Lender for purposes including collection, repayment facilitation, borrower communication and debt resolution.

3.2 cGreen may communicate repayment amounts, overdue information, settlement proposals, repayment plans, restructuring possibilities or other resolution alternatives to the extent such information has been provided, approved or authorised by the relevant Lender.

3.3 No waiver, settlement, restructuring, moratorium, reduction, write-off or other modification of a Borrower's loan obligation shall be binding upon a Lender unless expressly approved or confirmed by the Lender or communicated through an authorised cGreen process pursuant to the Lender's approval.

3.4 cGreen cannot independently compel a Lender to:

- (a) approve or reject a settlement;
- (b) waive principal, interest, penalties or charges;
- (c) restructure a loan;

- (d) grant a moratorium;
- (e) accept reduced instalments;
- (f) modify credit bureau reporting;
- (g) withdraw or modify legal proceedings; or
- (h) take any other credit or account-level decision,

unless cGreen has been expressly authorised by the Lender to implement that specific decision.

4. RESPONSIBLE COLLECTION PRACTICES

4.1 cGreen seeks to conduct borrower engagement and collection activities professionally, responsibly and in accordance with applicable law, regulatory requirements and instructions applicable to the relevant Lender.

4.2 cGreen does not endorse intimidation, harassment, abusive conduct, public humiliation, misleading representations, unlawful threats or improper disclosure of a Borrower's financial information to unrelated third parties.

4.3 Users are expected to communicate respectfully with cGreen employees, representatives and authorised partners.

4.4 cGreen may use technology-assisted communication tools, automated systems or artificial intelligence-enabled systems as part of its Services. Any automated communication concerning settlement, restructuring, waiver or another material modification of the underlying loan remains subject to the relevant Lender's authorisation or approval.

4.5 Where permitted by applicable law and after applicable notice or consent, certain interactions may be monitored or recorded for purposes including service delivery, quality, training, dispute resolution, fraud prevention, compliance and accurate documentation. Treatment of personal information shall be governed by cGreen's Privacy Policy and applicable law.

5. USER ELIGIBILITY AND AUTHORITY

5.1 You may use the Services only if you are legally capable of entering into the relevant transaction or are duly authorised to act on behalf of the relevant person or organisation.

5.2 If you access the Services on behalf of a company, Lender, Borrower or another person, you represent that you have authority to do so.

5.3 You must not impersonate another person or provide false, misleading or unauthorised information.

6. USER INFORMATION AND ACCOUNT SECURITY

6.1 You agree to provide accurate, current and complete information where requested.

6.2 You are responsible for maintaining the confidentiality of passwords, OTPs, access credentials and other authentication information associated with your account or transactions.

6.3 You must promptly notify cGreen if you reasonably suspect:

- (a) unauthorised access to your account;
- (b) misuse of your credentials;
- (c) an unauthorised transaction; or
- (d) fraudulent communication purporting to originate from cGreen.

6.4 Users should make Payments only through payment channels officially communicated by cGreen or the relevant Lender.

6.5 Users should not make Payments to an individual's personal bank account or other unauthorised payment destination merely because an individual claims to represent cGreen or a Lender.

7. PAYMENTS AND REPAYMENT FACILITATION

7.1 Where authorised by the relevant Lender, cGreen may facilitate receipt or processing of Payments made by Borrowers towards their loan obligations.

7.2 Amounts collected on behalf of a Lender are intended to be transferred or settled to the relevant Lender in accordance with the applicable settlement cycle.

7.3 Unless otherwise communicated for a particular transaction or payment method, cGreen endeavours to transfer eligible successfully received Payments to the concerned Lender on a **T+1 working-day basis**, where “T” represents the date of the successful transaction.

7.4 Settlement timelines may be affected by:

- (a) banking holidays;
- (b) payment gateway or banking-system delays;
- (c) reconciliation requirements;
- (d) failed or pending transactions;
- (e) regulatory or compliance checks; or
- (f) circumstances outside cGreen's reasonable control.

7.5 A receipt, SMS, email or electronic confirmation generated through cGreen acknowledges the relevant transaction recorded through the cGreen channel. Posting of the Payment to the underlying loan account may remain subject to reconciliation and confirmation by the relevant Lender.

7.6 If an amount is debited from a User's bank account but the transaction is shown as failed, pending or unsuccessful, the User should notify cGreen with relevant transaction details so that the transaction may be reconciled with the relevant bank, payment service provider and/or Lender.

8. REFUND POLICY

8.1 Because Payments received through cGreen are collected on behalf of the relevant Lender, cGreen may only initiate a refund while the relevant amount remains capable of being reversed or refunded by cGreen.

8.2 A refund request must be submitted to info@cgreen.in:

- (a) within **24 hours of the Payment**; and
- (b) before the amount has been transferred or settled by cGreen to the relevant Lender, **whichever occurs earlier**.

8.3 Once the relevant Payment has been transferred or settled to the Lender, cGreen cannot independently reverse or refund that amount. Any subsequent refund, reversal, adjustment or credit shall be subject to the relevant Lender's decision, processes and approval.

8.4 Subject to verification, a refund may be considered where:

- (a) a confirmed procedural or processing error attributable to cGreen has occurred;
 - (b) a confirmed transaction error attributable to cGreen cannot otherwise be corrected;
- or
- (c) a duplicate Payment has been received for the same repayment obligation.

8.5 Refunds will ordinarily not be available merely because of:

- (a) change of mind;
- (b) a decision to switch or approach another Lender;
- (c) rejection or non-sanction of a loan;
- (d) disagreement with the applicable interest rate, charges or other loan terms;
- (e) a dispute concerning the amount payable under the underlying loan;
- (f) a subsequent request for restructuring, settlement, waiver or reduction;

- (g) an error in information supplied by the User or Borrower; or
- (h) any circumstance other than an eligible refund situation under these Terms.

8.6 To process a refund request, cGreen may require information including:

- (a) transaction reference number;
- (b) date and amount of Payment;
- (c) reason for the refund request;
- (d) bank or payment details required for processing;
- (e) identity or account verification information; and
- (f) any other information reasonably required to investigate the transaction.

8.7 Subject to receipt of complete information and verification of eligibility, cGreen will ordinarily initiate an approved refund within **3 to 5 working days**.

8.8 The date on which the refunded amount actually appears in the User's account may depend on the relevant bank, card network, UPI provider, payment gateway or other payment service provider and may therefore be outside cGreen's direct control.

9. LENDER DECISIONS AND BORROWER DISPUTES

9.1 cGreen provides Services pursuant to instructions or information received from the relevant Lender and may rely upon information supplied by the Lender concerning the Borrower's account.

9.2 Unless expressly authorised otherwise, cGreen is not responsible for determining:

- (a) whether a loan should have been granted;
- (b) whether a loan should be recalled;
- (c) the applicable interest rate;
- (d) applicable penal charges;
- (e) the amount legally due;
- (f) the accuracy of the Lender's original loan documentation;
- (g) credit bureau reporting by the Lender; or
- (h) another decision reserved to the Lender.

9.3 A Borrower disputing the underlying loan, the amount claimed, interest calculation, charges or a decision of the Lender may be required to raise the underlying dispute with the Lender.

9.4 cGreen may, where appropriate, facilitate communication or escalation of such issues but does not guarantee the outcome of any request made to a Lender.

10. PROHIBITED USE

Users must not:

- (a) use the Services for any illegal, fraudulent, abusive or unauthorised purpose;
- (b) impersonate another person;
- (c) submit forged, manipulated, misleading or false information;
- (d) interfere with or disrupt the Platform;
- (e) introduce viruses, malware or harmful code;
- (f) attempt to gain unauthorised access to cGreen's systems or another User's information;
- (g) scrape, crawl, mine or systematically extract information from the Platform without written authorisation;
- (h) reverse engineer, decompile or attempt to derive source code from cGreen software except where such restriction is prohibited by applicable law;
- (i) use cGreen's intellectual property for unauthorised commercial purposes;
- (j) threaten, abuse or harass cGreen employees, representatives, Lenders or other Users; or
- (k) use the Services in a manner that infringes the rights of any third party.

11. PRIVACY AND PERSONAL DATA

11.1 Use of the Services is also governed by cGreen's **Privacy Policy**, as updated from time to time.

11.2 The Privacy Policy explains how cGreen may collect, use, process, store and disclose personal information in connection with its Services.

11.3 Personal information shall be processed in accordance with applicable data-protection and privacy laws as in force from time to time.

11.4 Where cGreen processes information pursuant to an engagement with a Lender, such processing may also be subject to the relevant contractual and legal responsibilities between cGreen and that Lender.

11.5 In the event of inconsistency between these Terms and the Privacy Policy solely in relation to treatment of personal information, the Privacy Policy shall apply to the extent appropriate to that privacy matter, subject always to applicable law.

12. USER-SUBMITTED INFORMATION

12.1 You retain your rights in information, documents or other materials submitted by you to cGreen, subject to any rights held by the relevant Lender or another lawful owner.

12.2 You grant cGreen a limited, non-exclusive right to process, reproduce, transmit, store and otherwise use information submitted by you only to the extent reasonably necessary to:

- (a) provide the Services;
- (b) communicate with you or the relevant Lender;
- (c) process and reconcile Payments;
- (d) investigate complaints or disputes;
- (e) prevent fraud or misuse;
- (f) meet regulatory or legal obligations; and
- (g) exercise or defend legal rights.

12.3 This provision does not grant cGreen ownership of a User's personal documents or underlying loan records.

13. INTELLECTUAL PROPERTY

13.1 The cGreen Platform, software, workflows, technology, interfaces, designs, documentation, databases, logos, graphics, trademarks, trade names and other proprietary materials are owned by or licensed to Matference Technologies India Private Limited.

13.2 cGreen is a registered brand of Matference Technologies India Private Limited.

13.3 No provision of these Terms transfers ownership of cGreen's intellectual property to any User.

13.4 Users receive only a limited, non-exclusive, non-transferable and revocable right to use the Platform for its intended purpose and in accordance with these Terms.

13.5 Users must not copy, reproduce, modify, distribute, sublicense, sell, commercially exploit or create derivative works from cGreen's proprietary technology or materials except with prior written permission or where otherwise permitted by law.

14. THIRD-PARTY SERVICES

14.1 cGreen may use third-party service providers in connection with hosting, communications, identity verification, payment processing, banking, cloud infrastructure, analytics or other supporting functions.

14.2 cGreen is not responsible for an interruption or failure solely attributable to a third-party service provider and outside cGreen's reasonable control, subject to cGreen's obligations under applicable law.

14.3 A User may also be subject to the terms and policies of the relevant bank, payment gateway, UPI service, card network, telecom provider or other third-party service used in connection with the transaction.

15. ELECTRONIC COMMUNICATIONS

15.1 By using the Services and providing contact information, you acknowledge that cGreen may communicate with you through legally permitted channels including telephone calls, SMS, email, WhatsApp, application notifications or other electronic channels in connection with the Services.

15.2 Such communications may include transaction information, repayment reminders, account-related information, resolution discussions, service communications, security alerts and legally required notices.

15.3 Nothing in this clause authorises communications that are prohibited by applicable law or regulatory requirements.

16. NO PROFESSIONAL OR CREDIT ADVICE

16.1 General information made available through cGreen does not constitute independent legal, tax, investment or financial advice.

16.2 Borrowers should assess the implications of settlement, restructuring, waiver or other debt-resolution options based on the terms communicated by the Lender and may seek independent professional advice where appropriate.

17. SERVICE AVAILABILITY AND DISCLAIMER

17.1 cGreen will use reasonable efforts to maintain the availability and functionality of its Services.

17.2 However, Services may occasionally be unavailable because of maintenance, upgrades, telecommunications failures, banking interruptions, third-party failures, cybersecurity incidents or other circumstances.

17.3 To the maximum extent permitted by applicable law, cGreen does not warrant that the Services will at all times be uninterrupted, error-free or available without delay.

17.4 cGreen does not guarantee:

- (a) approval of any loan;
- (b) acceptance of any settlement or restructuring request;

- (c) waiver of any amount;
- (d) withdrawal of legal or recovery action by a Lender;
- (e) modification of a credit report; or
- (f) any particular resolution outcome.

17.5 Nothing in these Terms excludes any statutory warranty, right or remedy that cannot lawfully be excluded.

18. LIMITATION OF LIABILITY

18.1 To the maximum extent permitted by applicable law, cGreen shall not be liable for indirect, incidental, special, punitive or consequential losses arising solely from use of or inability to use the Services.

18.2 cGreen shall not be responsible for losses caused solely by:

- (a) incorrect information supplied by a User or Lender;
- (b) a decision made independently by a Lender;
- (c) unauthorised use of a User's credentials where such unauthorised use is not attributable to cGreen;
- (d) failure of a bank, payment network or third-party provider outside cGreen's reasonable control; or
- (e) circumstances qualifying as force majeure.

18.3 Where cGreen is found liable for a direct loss arising from a specific paid cGreen service, cGreen's aggregate contractual liability shall, to the extent permitted by applicable law, not exceed the fees or charges paid directly to cGreen by the claimant for that specific service giving rise to the claim.

For clarity, amounts merely collected by cGreen on behalf of a Lender towards repayment of the Borrower's loan shall not constitute "fees or charges paid to cGreen" for this purpose.

18.4 The limitations above shall not apply to liability that cannot legally be limited or excluded.

19. INDEMNITY

To the extent permitted by applicable law, a User agrees to indemnify cGreen, Matference Technologies India Private Limited and their directors, officers, employees and authorised representatives against third-party claims, losses or reasonable costs arising directly from:

- (a) fraudulent or unlawful use of the Services by the User;
- (b) material breach of these Terms;
- (c) deliberate submission of false or unauthorised information;
- (d) infringement of third-party rights by materials submitted by the User; or
- (e) unauthorised use of another person's account or identity.

This clause does not require a User to indemnify cGreen for losses caused by cGreen's own fraud, wilful misconduct or liability that cannot lawfully be transferred.

20. SUSPENSION AND TERMINATION

20.1 cGreen may restrict, suspend or terminate access to all or part of the Services where reasonably necessary because of:

- (a) breach of these Terms;
- (b) suspected fraud or unlawful activity;
- (c) security concerns;
- (d) misuse of the Platform;
- (e) instructions or termination of an engagement by the relevant Lender;
- (f) legal or regulatory requirements; or
- (g) discontinuation of the relevant Service.

20.2 Suspension or termination of access to cGreen does not by itself extinguish, modify or waive any repayment obligation owed by a Borrower to a Lender.

20.3 Provisions concerning intellectual property, Payments already made, liability, dispute resolution and other provisions intended by their nature to survive termination shall continue after termination.

21. FRAUD, SECURITY AND UNLAWFUL ACTIVITY

21.1 cGreen may investigate suspected misuse, fraud, security incidents or unlawful activity relating to its Services.

21.2 cGreen may preserve and disclose relevant information where required or permitted by applicable law, lawful process, regulatory direction or a valid request from an authorised governmental or law-enforcement authority.

21.3 cGreen may block or restrict transactions or access where reasonably necessary to protect Users, Lenders, cGreen or the integrity of the Services.

22. FORCE MAJEURE

cGreen shall not be liable for delay or failure in performing an obligation to the extent caused by events beyond its reasonable control, including natural disasters, acts of government, regulatory action, war, civil disturbance, epidemics, telecommunications or internet failures, banking or payment network failures, widespread system failures, labour disruption or other comparable events.

This clause does not excuse obligations that cannot lawfully be excluded.

23. SEPARATE AGREEMENTS WITH LENDERS AND BUSINESS CLIENTS

23.1 Lenders and other institutional clients may enter into separate written service agreements, statements of work, commercial arrangements, data-processing agreements, SLAs or other contracts with cGreen.

23.2 Where such a written agreement exists, that agreement shall govern the relationship between cGreen and that institutional client and shall prevail over these general Terms to the extent of any inconsistency.

23.3 These Terms do not amend the underlying loan agreement between a Borrower and a Lender.

24. CHANGES TO THESE TERMS

24.1 cGreen may update these Terms from time to time to reflect changes in the Services, technology, law, regulatory requirements or business operations.

24.2 The latest version will be made available through the relevant cGreen website, application or Service.

24.3 Where required by applicable law or where a change materially affects User rights, cGreen will provide such notice as may be reasonably or legally required.

24.4 Continued use of the Services after revised Terms become effective constitutes acceptance of the revised Terms to the extent permitted by applicable law.

25. GOVERNING LAW

These Terms shall be governed by and interpreted in accordance with the laws of India.

Nothing in these Terms restricts a User from exercising rights before a regulator, consumer forum, court or other authority where such rights cannot legally be waived.

26. DISPUTE RESOLUTION

26.1 A User should first attempt to resolve any complaint or dispute by contacting cGreen at info@cgreen.in.

26.2 The parties should use reasonable efforts to resolve the dispute amicably.

26.3 Subject to rights or remedies that cannot lawfully be excluded, a dispute arising out of or in connection with these Terms that remains unresolved may be referred to arbitration by a sole arbitrator in accordance with the Arbitration and Conciliation Act, 1996, as amended from time to time.

26.4 The arbitration shall be conducted in English.

26.5 The seat and venue of arbitration shall be **Mumbai, Maharashtra**, unless the parties mutually agree otherwise or applicable law requires otherwise.

26.6 Nothing in this provision prevents a party from seeking urgent interim or injunctive relief from a court of competent jurisdiction.

27. SEVERABILITY

If any provision of these Terms is found to be invalid, illegal or unenforceable, that provision shall be enforced to the maximum extent legally permissible and the remaining provisions shall continue in effect.

28. WAIVER

Failure by cGreen to enforce any provision of these Terms on one occasion does not constitute a waiver of its right to enforce that provision or another provision subsequently.

29. ASSIGNMENT

29.1 Users may not transfer their rights or obligations under these Terms without cGreen's prior written consent where such transfer would materially affect the Services or another person's rights.

29.2 cGreen may transfer or assign its rights and obligations in connection with a merger, restructuring, reorganisation, transfer of business or sale of all or substantially all of the relevant business, subject to applicable law.

30. ENTIRE TERMS

These Terms, together with the Privacy Policy, applicable Refund Policy, transaction-specific terms and any other terms expressly incorporated by reference, constitute the general terms governing a User's access to cGreen's Services.

For institutional Lenders or business clients having a separate executed agreement with cGreen, the separate agreement shall prevail to the extent expressly provided in Section 23.

31. CONTACT AND GRIEVANCES

Questions, complaints or requests concerning these Terms or cGreen's Services may be sent to:

MATFERENCE TECHNOLOGIES INDIA PRIVATE LIMITED

Brand: cGreen

Email: info@cgreen.in

Communication Address:

Building No. 1 (61), B Wing, Sector 2, Millenium Business Park,

Mahape, Navi Mumbai – 400710

Landmark: Near post office building

Privacy-related grievances shall also be handled in accordance with cGreen's Privacy Policy and applicable data-protection law.

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